

of Gloucester, for Jones Register to the Bishop of Gloucester, because Hall had published slanderous words of him, *sc.* "That Mr Jones and his clerks have by colour of his office extorted and gotten 300l. per annum, by unlawful means for many years together, above their ordinary fees, for proving of testaments, and granting of administrations," and the judgment was reversed for two errors. 1. Because the said words did not concern any matter (*d*) touching the market, and therefore the Court had no jurisdiction of them; [73 b] but if one slanders any one who trades in the market, in any thing which (*e*) concerns his trade, there an action lies well. 2. It appears in the declaration that the words were spoken (*f*) before the market, and not in it: for as the Court had no (*g*) jurisdiction but for things concerning the market, so it had no jurisdiction for matters concerning the market unless they were done in the market. *Vide* 2 & 3 P. & M. (*h*) Dy. 132. *Vide* Bract. 334. (*i*) 13 E. 4. 8. b. 7 H. 6. 19. 13 H. 7. 19. b. the stat. of 27 H. 6. c. 5. 17 E. 4. c. 2. & 1 R. 3. 6. *Pari ratione* it would be against reason that pleas should be held *coram Senesch' & Maresch' hospiti' dom' Reg'* of a thing which doth not concern any of the household. The fourth reason *ex congruo*, it would not be seemly that any carman or other mechanical person should sue another in the same Court, and draw them *in aulam Regis*, where the Court was originally held, for they have not *vestimenta aulica*; and therefore it is recorded by St. Luke the Ev. c. 7. v. 25. *Dirit ad turbam quid exiistis videre hominem molliu' vestimentis indutum? Ecce qui in vesta preciosa sunt et in deliciis agunt, in domib' reguin sunt.* And the common law regards conveniency, and doth not allow *aliquid indecorum*, nor that which is done *contra bonos mores*.—5. At the same Parliament, *scil' an'* (*a*) 28 E. 1. c. 5. it was enacted, that the Chancellor and Justices of his Bench should follow him, so that he might have at all times near him some that be learned in the law, which be able duly to order all such matters as shall come to the Court at all times when need shall require, and it appears by divers records subsequent, that the Chancellor and the Judges after that Act had their purveyors, &c. and that accordingly purveyance was made for them, as appears in Rot. Pat. 10 E. 2. parte 2. Memb. 20. & 2 E. 3. parte 1. Memb. 33. &c. till 4 E. 3. at which time the Court of King's Bench became resident, and all the pleas there being *coram Rege*: and by the Act of 4 E. 3. c. 3. it was prohibited, that no purveyance should be taken great or small, but only that the purveyors of the King, Queen, and their children, take not corn, &c. But by the said Act of 28 E. 1. c. 5. the general authority of the Steward vanished, inasmuch as having regard to the same, they were but the vicegerents of the Chief Justice when he himself was present, (*b*) *in presentia majoris cessat potestas minoris*; and yet the under colour of their former general authority, they encroached much upon the common law. And it was observed, that the Court of Marshalsea of the King's House never held any pleas of the Crown after the making that Act, because the Justices of the King's Bench were to follow the King, and therefore they have used to hear and determine pleas of the Crown within the verge by force of a commission of oyer and terminer, in vacation time, for in (*c*) term time when the King's Bench sits in the same county, all commissions cease. *Vide Katherine Wrote's case* in the Fourth Part of my Reports, fol. 47. a. 6. [74 a] The reason why this Court was limited to these three actions was, because one of the household who lives on his salary or pension, has often occasion to borrow money, and make covenants with others of the same household for apparel and other necessities; and for trespass *vi et arm'* as battery, carrying away of goods, &c. they have jurisdiction for the preservation of the peace, as aforesaid. 7. The reason why

(*d*) 4 Inst. 272. Moor 624. Cro. El. 773. 1 Roll. 544. 2 Bulst. 21. 24. Cro. Jac. 313. Moor. 830, 831. Cro. Car. 46.

(*e*) 2 Inst. 272. 2 Bulst. 21.

(*f*) Moor 624. 4 Inst. 272. 2 Bulst. 21.

(*g*) Cro. El. 773.

(*h*) Dy. 132. pl. 80. Jenk. Cent. 211. 2 Bulst. 21. 23. Moor. 830. 1 Roll. 544. Finch Ley 132. a. 4 Inst. 272. Kelw. 99. a.

(*i*) Fitz. Cor. 3. Br. Error 171.

(*a*) Rastal Chancery 1. 2 Inst. 551.

(*b*) 9 Co. 118. b. 2 Inst. 26. 166.

(*c*) 9 Co. 118. b. 121. a.